

# Ownership Restructure — 51% Sompriya Chanda / 49% Co-Founder

**DRAFT — ATTORNEY + CPA REVIEW REQUIRED.** Transferring membership interest has tax consequences (gift vs. sale, basis, community-property elections for spouses in CA). Between spouses this is usually simple and tax-free, but get 30 minutes of CPA time before signing. Nothing here takes effect until executed and filed.

## Why 51/49

Women-owned certifications (SBA **WOSB**, CA **WBE/DGS**, **WBENC**) require  $\geq 51\%$  ownership **and control** by a woman: Sompriya Chanda must hold majority interest AND serve as the highest officer (Managing Member/CEO), managing day-to-day operations. Paper ownership without control fails certification audits — the operating agreement below therefore vests management authority, not just units, in her.

## Step-by-step (maps to dashboard Task 3)

1. Confirm current entity type + state (Q&A item `ENTITY_STATE`). If **LLC**: amend the Operating Agreement (template below) + file any state amendment listing managers. If **Inc (corporation)**: instead execute a stock transfer + update the stock ledger, and consider LLC conversion for pass-through simplicity — ask the CPA.
2. Execute the **Membership Interest Assignment** (co-founder → Sompriya Chanda, to reach 51%). Spousal transfer: typically gift-tax-free (unlimited marital deduction); CPA confirms and papers basis.
3. Adopt **Amended & Restated Operating Agreement** naming Sompriya Chanda as sole Managing Member with operational control; co-founder as Member (49%) with defined consent rights (sale of company, new debt > \$25k, admission of members).
4. File/update: IRS Form 8822-B if responsible party changes · CA SOS Statement of Information (manager change) · d/b/a "ZipNab" filing lists the LLC · bank signature cards · Stripe beneficial-ownership update (>25% owner — Stripe will ask).
5. Certifications (post-restructure, ~90 days): SBA WOSB via [certify.sba.gov](https://certify.sba.gov) (free) · CA DGS WBE · optional WBENC (fee). Needed docs: amended OA, assignment, tax returns, resume showing her control.
6. Business license: the **City of Tracy business license** and CDTEFA permit are issued to the LLC — file them AFTER the amendment so records show the final structure.

## Template A — Membership Interest Assignment (one page)

ASSIGNMENT OF MEMBERSHIP INTEREST. For value received and in consideration of mutual covenants, {{CoFounderName}} ("Assignor") hereby assigns and transfers to Sompriya Chanda ("Assignee") a {{X}}% membership interest in GetBriefed LLC, a {{State}} limited liability company, such that immediately after this assignment Assignee holds 51% and Assignor holds 49% of all membership interests. Assignor warrants the interest is free of liens. The Members consent to this transfer and waive any right of first refusal. Effective date: {{Date}}.

Signatures: Assignor \_\_\_\_\_ Assignee \_\_\_\_\_

## Template B — Operating Agreement amendment (key clauses)

- **Ownership:** Sompriya Chanda 51 units (51%); {{CoFounderName}} 49 units (49%).
- **Management:** The Company is manager-managed. Sompriya Chanda is the sole Managing Member and Chief Executive, with exclusive authority over day-to-day operations, banking, hiring, and contracts in the ordinary course.
- **Major decisions** (both Members' written consent): merger/sale, debt over \$25,000, admission of new members, amendment of this Agreement, distributions outside §{{ }}.
- **Distributions:** pro-rata to ownership; tax distributions each April 1.
- **Community property acknowledgment** (CA): each spouse acknowledges the character of the interests per attached spousal consent. ← CPA/attorney language here.

## Cost & time

Attorney review 0.5–1 hr (~~\$200–400~~) — ~~CPA 0.5 hr~~ (\$150) · SOS filing ~\$20–30 · signable same-week. Budget line: fits the existing \$200 registrations allocation plus ~\$300 contingency — flag: this pushes total legal spend ~\$300 over the original \$5k plan's legal line; covered by the contingency line.